

**बिड दस्तावेज़ / Bid Document**

| बिड विवरण/Bid Details                                                                                                       |                                                                                                                                                                                                                                                                                                             |
|-----------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| बिड बंद होने की तारीख/समय /Bid End Date/Time                                                                                | 04-06-2026 18:00:00                                                                                                                                                                                                                                                                                         |
| बिड खुलने की तारीख/समय /Bid Opening Date/Time                                                                               | 04-06-2026 18:30:00                                                                                                                                                                                                                                                                                         |
| बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)                                                   | 120 (Days)                                                                                                                                                                                                                                                                                                  |
| मंत्रालय/राज्य का नाम/Ministry/State Name                                                                                   | Ministry Of Power                                                                                                                                                                                                                                                                                           |
| विभाग का नाम/Department Name                                                                                                | Na                                                                                                                                                                                                                                                                                                          |
| संगठन का नाम/Organisation Name                                                                                              | Ntpc Limited                                                                                                                                                                                                                                                                                                |
| कार्यालय का नाम/Office Name                                                                                                 | Ussc Cpg2 Raipur                                                                                                                                                                                                                                                                                            |
| कुल मात्रा/Total Quantity                                                                                                   | 1                                                                                                                                                                                                                                                                                                           |
| वस्तु श्रेणी /Item Category                                                                                                 | PR_ 700075901_ M1490996401_ X-RAY M/C, DIGITAL, 1000MA_ Item-10_ Schedule-1                                                                                                                                                                                                                                 |
| GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS                                                         | X-RAY M/C,DIGITAL,1000MA                                                                                                                                                                                                                                                                                    |
| GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS                                                        | C Arm Fluoroscope X - Ray Machine (V2), Cleaning Duster (V3), Digital Radiography System (V2), 300mA X - Ray Machine (V2), Digital Medical X - Ray Films (V3), Dental X - Ray Machine (V2), Dry Erase Writing Boards (V3), LED X - Ray Illuminator (V2), File/Folder (V3), Automatic X - Ray Film Processor |
| अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification                                   | <ul style="list-style-type: none"> <li>Digital Radiography System (V2)</li> </ul>                                                                                                                                                                                                                           |
| एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover        | No                                                                                                                                                                                                                                                                                                          |
| स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover | No                                                                                                                                                                                                                                                                                                          |
| विक्रेता से मांगे गए दस्तावेज़/Document required from seller                                                                | <p>Certificate (Requested in ATC),Compliance of BoQ specification and supporting document</p> <p>*In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer</p>             |

| बिड विवरण/Bid Details                                                                                                                                                                                                    |                                                                                                                                                                                                                                          |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid? | No                                                                                                                                                                                                                                       |
| बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension                                                                                | 3                                                                                                                                                                                                                                        |
| दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended                                                                                                      | 7                                                                                                                                                                                                                                        |
| ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count                                                                                                                                            | 3                                                                                                                                                                                                                                        |
| बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled                                                                                                                                                                       | No                                                                                                                                                                                                                                       |
| बिड का प्रकार/Type of Bid                                                                                                                                                                                                | Two Packet Bid                                                                                                                                                                                                                           |
| तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation                                                                                        | 2 Days                                                                                                                                                                                                                                   |
| निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)                                     | No                                                                                                                                                                                                                                       |
| Payment Timelines                                                                                                                                                                                                        | Payments shall be made to the Seller within <b>30</b> days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC) |
| मूल्यांकन पद्धति/Evaluation Method                                                                                                                                                                                       | Total value wise evaluation                                                                                                                                                                                                              |
| मध्यस्थता खंड/Arbitration Clause                                                                                                                                                                                         | No                                                                                                                                                                                                                                       |
| सुलह खंड/Mediation Clause                                                                                                                                                                                                | No                                                                                                                                                                                                                                       |

#### ईएमडी विवरण/EMD Detail

|                             |        |
|-----------------------------|--------|
| एडवाइजरी बैंक/Advisory Bank | ICICI  |
| ईएमडी राशि/EMD Amount       | 100000 |

#### ईपीबीजी विवरण /ePBG Detail

|                   |    |
|-------------------|----|
| आवश्यकता/Required | No |
|-------------------|----|

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित केटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने है। एमएसई केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b).ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c).ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

#### लाभार्थी /Beneficiary :

NTPC Limited

NTPC Limited,9th Floor, Tower-C, Commercial Complex Plot No:C-03, Central Business District (CBD), Sector-21, Atal Nagar Nava Raipur, Chhattisgarh, Pin Code-492018

(Ntpc Limited)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

#### एमआईआई के लिए आरक्षित / Reserved for Make In India products

|                                                             |     |
|-------------------------------------------------------------|-----|
| एमआईआई के लिए आरक्षित / Reserved for Make In India products | Yes |
|-------------------------------------------------------------|-----|

#### एमएसई खरीद वरीयता/MSE Purchase Preference

|                                                                                                                                                                                    |     |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|
| एमएसई खरीद वरीयता/MSE Purchase Preference                                                                                                                                          | Yes |
| सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ तक की सीमा में हो / Purchase Preference to MSE OEMs available upto price within $L1+X\%$ | 15  |
| सूक्ष्म और लघु उद्यम को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MSE purchase preference                                | 100 |

#### ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

**This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.**

1. Bid reserved for Make In India products: : Procurement under this bid is reserved for purchase from Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. However, eligible micro and small enterprises will be allowed to participate. The minimum local content to qualify as a class 1 local supplier is denoted in the bid document. All bidders must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which the bid is liable to be rejected. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other

than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020 . In case Buyer has selected Purchase preference to Micro and Small Enterprises clause in the bid, the same will get precedence over this clause.

2. Purchase preference will be given to MSEs having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service and Buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the OM No. F.1/4/2021-PPD dated 18.05.2023 [OM No.1 4 2021\\_PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

## **PR\_700075901\_M1490996401\_X-RAY M/C, DIGITAL, 1000MA\_ Item-10\_ Schedule-1 ( 1 pieces )**

**(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)**

### **तकनीकी विशिष्टियाँ /Technical Specifications**

|                                                         |                          |
|---------------------------------------------------------|--------------------------|
| क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document | <a href="#">Download</a> |
|---------------------------------------------------------|--------------------------|

### **प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity**

| क्र.सं./S.No. | प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer | पता/Address                                                                                                                        | मात्रा /Quantity | डिलीवरी के दिन/Delivery Days |
|---------------|----------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------|------------------|------------------------------|
| 1             | Anirudh Prasad Jaiswal                                   | 813214,GSTIN:<br>10AAACN0255D2ZC NTPC<br>Stores Kahalgaon Super<br>Thermal Power Project P.O.<br>KAHALGAON STP BHAGALPUR<br>813214 | 1                | 84                           |

### **क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions**

#### **1. Generic**

Bidder shall submit the following documents along with their bid for Vendor Code Creation:

- a. Copy of PAN Card.

- b. Copy of GSTIN.
- c. Copy of Cancelled Cheque.
- d. Copy of EFT Mandate duly certified by Bank.

2. **Generic**

Supplier shall ensure that the Invoice is raised in the name of Consignee with GSTIN of Consignee only.

3. **Scope of Supply**

Scope of supply (Bid price to include all cost components) : Only supply of Goods

4. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

**Contact details:**

- 1. Dipthi Nikose, DGM Purchase, 9450925449, dipthinikose@ntpc.co.in
- 2. Sudipto De Sarkar, AGM Purchase, 9650509419, sudiptodesarkar@ntpc.co.in

***Buyer Added Bid Specific Terms and Conditions***

|   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|---|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1 | <p>For VSC LTE: Subject Tender is floated on Limited Tender (LT) basis and Vendors eligible to participate have been short-listed and approved by Competent Authority as per 'Works &amp; Procurement Policy of NTPC'. Email will be sent to the aforesaid shortlisted vendors for participation in the subject tender on GeM Portal. Only those bidders who have received the aforesaid invitation mail from NTPC should participate in the subject tender.</p> <p>Any Other Bidder(s) who is not shortlisted/approved by Competent Authority for this Bid and have not received email in this regard, shall not be considered and bids of such bidder(s) shall be summarily rejected during Technical Evaluation.</p> <p>Authorized Dealers/ Channel Partners of those "manufacturers" who have received the aforesaid invitation mail from NTPC can also participate in this tender. However, such dealers/ channel partners shall have to submit a Bid-Specific Authorization Certificate from the manufacturer along with their bids. GeM Contract shall be issued in the name of the vendor who submits offer in GeM. Authorisation issued by any bidder who is not a manufacturer will not be considered valid.</p> <p>However, if a shortlisted manufacturer authorises multiple dealers/ channel partners to submit bids, all such bids shall be rejected on the ground of conflict of Interest detailed later in the document.</p> |
|---|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

2 **Nil deviation** clause for all schedules:

Compliance to ALL provisions of the bidding document (Nil Deviation bid) is mandatory which is to be accepted through the "Seller undertaking" during submission of offer by the seller in GeM which inter alia states:

"3) I have read all the Bid conditions including the GeM GTC, STC and also all the clauses incorporated by the Buyer in ATC and various corrigendum of the bid. I hereby confirm acceptance and compliance of all the conditions including GTC, STC and ATC and Corrigendum conditions. I also confirm that all the product(s) offered is/are fully compliant with the specifications asked for in the bid, including the additional specification parameters incorporated by the Buyer in the bid document".

Through their acceptance of the above, the seller also undertakes the following:

"1. With reference to our bid submitted against the tender, we hereby confirm that we comply with all terms, conditions and specifications of the Bidding Documents read in conjunction with Amendment(s) / Clarification(s) / Addenda/Errata (if any) issued by the Employer prior to opening of Techno-Commercial Bids and the same has been taken into consideration while making our Techno-Commercial Bid & Price Bid and we declare that we have not taken any deviation in this regard.

2. We also confirm that all the product(s) offered is/are fully compliant with the specifications asked for in the bid, including the additional specification parameters incorporated by the Buyer in the bid document.

3. We understand that in case the Products and/or Services offered do not meet the technical requirements, then our bid shall be rejected as Technically non-responsive.

We also confirm that in case we refuse to withdraw additional conditions/deviations/variations/exception, implicit or explicit, found anywhere in the techno-commercial bid, our bid shall be rejected as Technically non-responsive.

We further confirm that if any deviation/variation in any form is found in our Price Bid, the EMD shall be forfeited".

|   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|---|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 3 | If any seller/bidder has any <b>clarification</b> against technical specification or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation Window provided in the bid details field in Seller dashboard after logging in as a seller within 4 days of bid publication as allowed by GeM. Clarification asked through any means other than above, may not be considered by NTPC.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 4 | <p>Bidder may quote as per "<b>Technical Specification</b>" and/ or spec sheet attached for each line item/ schedule. In case of any contradiction between Category/ BOQ Item description and "Technical Specification" of the item(s) attached in the tender, TECHNICAL SPECIFICATION OF THAT ITEM SHOULD BE CONSIDERED FOR THE SUBMISSION OF OFFER AND SAME SHALL BE CONSIDERED FOR EVALUATION PURPOSE AT OUR END. The details mentioned in the detailed Technical specification shall be considered final for the offer/ bid / technical evaluation.</p> <p>Bidder has to quote make and model in GeM as per option available in GeM during submission of offer after meeting all the technical specification of tender. After opening of bids, any change in vendor's quoted make or model in their bid can not be done and any such request will be rejected. In the event of an order, vendors' quoted make and model in their bid will also get automatically populated in the GEM Purchase order. Also, MSE &amp; MII benefits will be given exclusively based on documents submitted in reference to the "quoted make and model" submitted in the GeM bid.</p> |
| 5 | <b>Guarantee/Warranty:</b> 12 months from the date of use/commissioning or 18 months from the date of supply, whichever is earlier. (The Guarantee/ Warranty Terms and Conditions shall be applicable to the material supplied against the PO. No separate Guarantee/ Warranty Certificate is required to be submitted by the Supplier along with the material. The Guarantee / Warranty terms and condition shall be binding on the supplier). If any higher Guarantee/warranty mentioned in the technical specification the same shall be applicable.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 6 | <b>Common IP Addresses:</b> Bidders may please note that GeM is capturing and presenting to the buyer the IP addresses used by the Buyer and the Bidder(s) /Seller(s). The received bids having matching/common IP address with either Bidder(s)/Seller(s) or Buyer, shall be outrightly rejected & shall not be considered for further evaluation.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 7 | During techno-commercial evaluation of offer, <b>clarification/ reply to the queries</b> (if asked by NTPC) given by bidder will be considered an integral part of the GeM purchase order and the vendor will be liable to execute the P O also in accordance to the same. Furthermore, in the event subsequent clarification(s)/query(ies) are sought and bidder fails to respond or responds with incorrect / inadequate or non-compliant information, the bid will be liable to be rejected. Subsequent representation(s) may not be accepted in such cases.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |

|    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 8  | All <b>post award communication</b> / grievance will be addressed to consignee at email id: <a href="mailto:storeincharge-kahalgaon@ntpc.co.in">storeincharge-kahalgaon@ntpc.co.in</a> . In case of non-resolution of the issue, matter can be escalated along with previous correspondence(s) to email id :- vendor_grievance_cpg2@ntpc.co.in                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 9  | <b>Payment terms:</b> As per GeM bid                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 10 | <p><b>MII:</b> As per bid.</p> <p>Declaration of Local Content is a self-certification which is submitted by a bidder clearly indicating the following details:</p> <ul style="list-style-type: none"> <li>· Description of Goods and Services offered.</li> <li>· Whether meeting Class-I/Class-II/Non-Local Supplier as per tender terms and conditions.</li> <li>· Location at which local value addition is made.</li> </ul> <p>The above provisions have been adopted by C&amp;M as per as per guidelines issued under Public Procurement (Preference to Make In India Order 2017) issued by Department of Industrial Policy and Promotion under Ministry of Commerce which is also being followed in other Public Procurement Entities.</p> <p><b><i>Further, Bidders (in case manufacturers) are required to submit any of the following documents viz. Latest Annual Report or NSIC / SS I / BIS License / ISO Certificate / Any Other Statutory Document as a proof of manufacturer of the offered product. In case bidder is a dealer/ trader, they are required to submit Declaration of Local Content duly signed by manufacturer along with submission of proof of manufacturing as elaborated above.</i></b></p> |
| 11 | PBG: Not applicable                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |



12

**CONFLICT OF INTEREST:**

A bidder shall not have conflict of interest with other bidders. Such conflict of interest can lead to anti- competitive practices to the detriment of Employer's interests. A bidder may be considered to have a conflict of interest with one or more parties in this bidding process, if:

- a) they directly or indirectly control, or are controlled by or are under common control of another entity; or
- b) they have the same legal representative/agent for purposes of their bids; or
- c) they have relationship with each other, directly or through common third party(ies), that puts them in a position to have access to information about or influence on the bid of another Bidder; or
- d) Bidder and/or any of its allied entity(ies), which directly or indirectly control(s) or is(are) controlled by or is(are) under common control of another entity, has(ve) participated as a consultant in the preparation of the design or technical specifications of the contract that is the subject of the tender; or
- e) Bidder participates in more than one bid in this bidding process.
- f) In cases of agents quoting on behalf of their principal manufacturers/ service providers, one agent cannot represent two manufacturers/service providers or quote on their behalf in a particular tender enquiry. One manufacturer/service provider can also authorize only one agent. There can be only one bid from the following:
  - i) The principal manufacturer/service provider directly or through one Indian agent on his behalf; and
  - ii) Indian/foreign agent on behalf of only one principal.

For the purposes of this clause the term 'control' shall have the following meaning:

"Control" shall include the right to appoint majority of the directors or to control the management or policy decisions exercisable by a person or persons acting individually or in concert, directly or indirectly, including by virtue of their shareholding or management rights or shareholders' agreements or voting agreements or in any other manner.

Vendor has to submit CONFLICT OF INTEREST declaration in bid during submission offer as detail as "We confirm that we have read and understood the Buyer Added Bid Specific ATC Clause regarding "Conflict of Interest" and our bid is in compliance to this clause. In case it is established that we have provided any false information in pursuance of the aforesaid Clause, while competing for this contract, then our bid shall be rejected and bid security shall be forfeited. We also understand that in case we become successful bidder, if it is established that we have not complied with terms of aforesaid Clause, during execution of contract, this would be considered as fraudulent practice as mentioned in para 5.1 (j) of "Policy for Debarment from Business Dealings" and shall be dealt accordingly."

Note: Policy for Debarment from Business Dealings available at "[https://ntpc.co.in/sites/default/files/policy- documents/Policy\\_for\\_Debarment\\_from\\_Business\\_Dealings.pdf](https://ntpc.co.in/sites/default/files/policy- documents/Policy_for_Debarment_from_Business_Dealings.pdf)".

## **CONFLICT OF INTEREST DECLARATION FORM**

..... PACKAGE FOR .....  
..... PROJECT  
BIDDING DOCUMENT NO. ....  
(Compliance to "Conflict of Interest" provisions)

We confirm that we have read and understood the ITB\* Clause regarding "Conflict of Interest" and our bid is in compliance to this clause.

In case it is established that we have provided any false information in pursuance of the aforesaid ITB\* Clause, while competing for this contract, then our bid shall be rejected and bid security shall be forfeited.

We also understand that in case we become successful bidder, if it is established that we have not complied with terms of aforesaid ITB Clause, during execution of contract, this would be considered as fraudulent practice as mentioned in para 5.1 (j) of "Policy for Debarment from Business Dealings" and shall be dealt accordingly.

- 13 **Risk purchase-** In the event of Suppliers failure to supply the material of acceptable quality in scheduled delivery period, NTPC reserves the right to procure the materials from any other source at the Suppliers risk and cost and the difference in cost shall be borne by the Supplier. Further, NTPC shall retain the right of forfeiture of CPG/ PBG and or any other action as deemed fit .

- 14 **Pre-Dispatch Inspection (PDI):** Not Applicable

- 15 EMD BG APPLICABLE

**EMD BG** to be submitted as per attached NTPC format only. BG received in any other format, including GeM format will be rejected.

**EMD Amount: As mentioned in the bid**

Vendor has to submit EMD as per NTPC FORMAT.

- (a) EMD-BG should be sent directly through post/courier at below mentioned address:

AGM (C&M-Purchase)

NTPC Limited, 9th Floor, Tower-C, Commercial Complex Plot No: C-03, Central Business District (CBD), Sector-21, Atal Nagar Nava Raipur, Chhattisgarh, PIN Code-492018

Earnest Money Deposit should be sent in a sealed envelope, super scribed on the top as under:

GeM Bid No. ....

Due Date of Bid Opening .....

From ..... (Name and address of the Bidder).

(b) Confirmation of BGs (including Bid Security) through Structured Financial Messaging System (SFMS)/SWIFT

While issuing the physical BGs, the Bidder's Bank shall also send electronic message through secure SFMS (in case of BGs issued from within India) or SWIFT (in case of BGs issued from outside India) to Employer's Beneficiary Bank whose details are provided herein below:

Bank Name: ICICI Bank Limited

Branch: CONNAUGHT PLACE BRANCH

Bank Address: 9A, PHELPS BUILDING, INNER CIRCLE, NEW DELHI- 110001

IFSC Code: ICIC0000007

BG issuing/amending bank must send the BG advice in the form of message format via SFMS (Structured Financial Messaging System) as provided by RBI. The format of the message for confirmation of the BG shall be as below:

BG advising message: IFN 760COV/ IFN 767COV via SFMS

Field Number: Particulars (to be mentioned in Row 1)

7037: NTPCBG (unique identifier)

In case BG is already prepared/amended and SFMS not sent, vendor may ask their bank to retransmit SFMS to NTPC beneficiary bank.

(c) The BG should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the State(s) as under (whichever is higher): :

1. State where BG is submitted (Unified Treasury, Dadri - U.P.)
2. State where BG to be acted upon (State where concerned plant is situated)
3. State where BG is executed (State of BG issuing bank branch)

The prevailing rate of non-judicial stamp paper value for BG in state of Chhattisgarh is Rs. 250/- subject to change as per Govt. notification.

|    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    | (d) The date, purpose of purchase and name of the purchaser should be indicated on the stamp paper. The stamp papers (other than e-stamp paper) should be duly signed by the stamp vendor. The date of sale of the non-judicial stamp paper, as indicated on the stamp paper should be of any date on or before the date of execution of the BG. The name of the Purchaser of stamp paper may either be the executing Bank or the party on whose behalf the BG is issued.                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 16 | Performance Bank Guarantee (PBG) Detail: Not APPLICABLE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 17 | <p>MSME benefit (purchase preference) is to be given as per following conditions:</p> <p>In case of procurement of goods/services, preferences to MSEs whose quoted prices are within L1) non MSEs) + 15% range (subject to matching of L1 price) will be given in the following order:</p> <ol style="list-style-type: none"> <li>1. SC-ST Women MSEs</li> <li>2. SC-ST other than Women MSEs</li> <li>3. Women MSEs</li> <li>4. Other MSEs</li> </ol> <p>The MSE order quantity will be as per following:</p> <ol style="list-style-type: none"> <li>1. Where the requirement is Not-Splitable: 100% of contract quantity will be awarded to MSEs.</li> <li>2. Where the requirement is Splitable: 25% of contract quantity will be awarded to MSEs. In case of more than one MSEs (for the same category) are within range of L1+15 % price, then 25% of tendered quantity will be divided equally amongst them.</li> </ol> |

#### 5. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

### अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly

and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

**All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.**

**For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.**

**The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:**

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

**All obligations relating to wages, social security, safety, working conditions, industrial relations etc.**

**and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.**

**This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.**

**However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.**

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

**---धन्यवाद/Thank You---**